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[TENTATIVE] ORDER SUSTAINING DEFENDANTS' DEMURRER AND GRANTING MOTION TO STRIKE

I. INTRODUCTION

Plaintiffs Lincoln Chan and Linda Thi Nguyen (collectively, "Plaintiffs") bring this action against Defendants Donna Milosavljevic, individually and as Trustee of the Milosavljevic Trust, and David Milosavljevic (collectively, "Defendants") arising out of a residential tenancy at property owned and/or managed by Defendants. The Complaint asserts causes of action for (1) Private Nuisance, (2) Breach of Warranty of Habitability, (3) Negligence, (4) Breach of the Implied Covenant of Good Faith and Fair Dealing, (5) Breach of the Implied Covenant of Quiet Enjoyment, (6) Intentional Infliction of Emotional Distress, (7) Negligent Infliction of Emotional Distress, (8) Violation of Civil Code section 1946.2, (9) Violation of AB 1482, (10) Violation of Civil Code section 1950.5, (11) Unjust Enrichment, and (12) Breach of Contract.

On June 18, 2026, the Court sustained Defendants' demurrer in part, including as to Plaintiffs' causes of action for intentional infliction of emotional distress ("IIED") and negligent infliction of emotional distress ("NIED"), with leave to amend.

On July 20, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC"). On August 19, 2026, Defendants filed the instant demurrer to the FAC and motion to strike. Plaintiffs filed an opposition on September 10, 2026, and Defendants filed a reply on September 18, 2026.

Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On July 20, 2026, the parties engaged in a telephonic meet and confer regarding the issues raised in the demurrer but were unable to reach a resolution. (Weissman Decl., ¶ 3.) Thus, meet and confer requirements are met.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Civ. Code §3294:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(c) As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

III. ANALYSIS

Fifth and Sixth causes of action: IIED and NIED

Defendants demur to these causes of actions for IIED and NIED, arguing that Plaintiffs fail to allege extreme and outrageous conduct sufficient to support their emotional distress claims. (Demurrer, pp. 6-7.)

As to NIED, Defendants additionally argue that this cause of action is predicated largely on Plaintiff's allegation of a "special relationship" between Plaintiffs and Defendants giving rise to a heightened duty of care. (FAC ¶ 154.) Defendants contend that the landlord-tenant relationship does not create such a heightened duty. (Id.)

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

The law of negligent infliction of emotional distress in California is typically analyzed by reference to two theories of recovery: the 'bystander' theory and the 'direct victim' theory. The negligent causing of emotional distress is not an independent tort, but the tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law." (Spates v. Dameron Hosp. Ass'n (2003) 114 Cal.App.4th 208, 213, ellipses, quotation marks, brackets, and paragraph breaks omitted.)

The Court previously sustained Defendants' demurrer to these causes of action with leave to amend. In the FAC, Plaintiffs now allege that Defendants wrongfully terminated their tenancy during their children's school year and improperly withheld their security deposit. (FAC, ¶¶ 129-130, 141.) Specifically, Plaintiffs allege Defendants stated that the property was being sold, but shortly after Plaintiffs moved out, Defendants instead rented the property at a higher rate. (FAC, ¶¶ 131-140.) Plaintiffs further allege Defendants improperly withheld portions of their security deposit. (FAC, ¶¶ 141-142.)

As to IIED, the Court finds these additional allegations insufficient to constitute extreme and outrageous conduct. Even accepting as true that Defendants falsely represented that they intended to sell the property, terminated Plaintiffs tenancy, rented the property at a higher rate, failed to provide relocation assistance, and improperly withhold portions of the security deposit, the alleged conduct is not so extreme as to exceed all bounds usually tolerated in a civilized community. (Wilson, supra, 207 Cal.App.4th at p. 1009.)

As for NIED, Plaintiffs allege that Defendants owed them a heightened duty of care based upon a "special relationship" arising during their tenancy. (FAC ¶ 154.) Plaintiffs allege Defendants knew or should have known that wrongfully terminating their tenancy and withholding their security deposit would cause severe emotional distress. (FAC, ¶¶ 155-178.)

The Court likewise finds that these allegations are insufficient. NIED is not an independent tort, but rather a form of negligence requiring the traditional elements of duty, breach, causation, and damages. (Spates, supra, 114 Cal.App.4th at p. 213.) In *Gonzales v. Personal Storage, Inc.* (1997) 56 Cal.App.4th 464, the court held that a landlord-tenant relationship did not itself give rise to a duty to protect the tenant from emotional distress. (Id. at pp. 474-475.) Thus, Plaintiffs fail to sufficiently allege the duty necessary to support their NIED claim.

Given that Plaintiffs expressly state in opposition that they "do not have any additional facts to plead" (Opposition., p. 2), the Court SUSTAINS the demurrer to the fifth and sixth causes of action without leave to amend.

Motion to Strike

Defendants moves to strike the old plumbing/cockroach allegations in FAC ¶¶ 5, 6, 18, and 40-59; treble/punitive damages language from ¶¶ 88 and 103; the last sentence of ¶ 104; ¶ 118; the last sentence of ¶ 154 in the NIED cause of action; and paragraphs 7, 8, and 12 of the prayer. (Notice, p.2.)

Given that the Court sustains the demurrer as to the fifth and sixth causes of action without leave, the request to strike the last sentence of ¶ 154 is now MOOT.

As to the remaining portions of the motion, the Court finds as follows. Cockroach/plumbing allegations

Defendants move to strike paragraphs 5, 6, 18, and 40-59 arguing these allegations concern the plumbing and cockroach conditions underlying claims that Plaintiffs previously abandoned are therefore no longer relevant. The Court agrees. As the Court previously found, Plaintiffs expressly abandoned their claims arising from the alleged cockroach infestation and plumbing conditions. Thus, these allegations are no longer relevant to Plaintiffs' claims and are properly stricken.

Thus, the motion to strike references to the cockroach infestation and plumbing conditions in paragraphs 5, 6, 18, and 40-59 is GRANTED.

Punitive/treble damages

Defendants next move to strike Plaintiffs allegations and prayer for treble and punitive damages, arguing the FAC fails to allege sufficient facts showing malice, oppression or fraud. (Motion, pp. 4-8.)

In opposition, Plaintiffs argue that Civil Code section 1946.2, subdivision (h), expressly permits an award of treble and punitive damages where the statutory requirements are satisfied. Specifically, section 1946.2, subdivision (h)(1)(C) permits recovery of up to three times actual damages “[u]pon a showing that the owner has acted willfully or with oppression, fraud, or malice.”

Here, the Court previously found that the original Complaint did not allege sufficient facts showing malice, oppression, or fraud. The FAC does not sufficiently cure this deficiency. Although Plaintiffs now allege that Defendants willfully terminated Plaintiffs' tenancy under the stated ground that the property was being sold despite having no intention of selling the property, and thereafter re-rented the property at a higher rate (FAC, ¶¶ 99-104), the underlying conduct is substantially the same as previously alleged. The original Complaint already alleged that Defendants misrepresented their reason for terminating the tenancy, re-rented the property at a higher rate, and wrongfully withheld portions of Plaintiffs' security deposit.

Thus, the Court finds the additional allegations insufficient to support Plaintiffs' claims for treble or punitive damages. The motion to strike is GRANTED.

IV. ORDER

The Court SUSTAINS the demurrer to the Sixth and Seventh Causes of Action without leave to amend.

The Court further GRANTS the motion to strike.

Defendant is to give notice.

Dated: September 24, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT